FSCA
Financial Sector Conduct Authority

FITNESS AND PROPRIETY OF APPLICANT THAT IS A NATURAL PERSON

FSP Number	
Applicant Name	

Instructions and notes:
(a) A passport number will only be accepted if the person completing the form is not a South African Citizen.
(b) Race must only be indicated if the person completing the form is a South African Citizen.
(c) A certified copy of the applicant's identification document (if he/she is a South African citizen) or passport (if he/she is not a South African Citizen) must accompany the application.
(d) Any change to the information provided in this form must be reported to the Authority, in writing, within 15 days after the change has taken place.

1. Honesty, integrity and good standing

Answer all the questions below. If the answer to any of the questions is YES, provide a full explanation and all information in a separate annexure and attach to the application form.

Questions

	Has the applicant ever-	Yes	No
1.	been found guilty in any criminal proceedings or liable in any civil proceedings by a court under any law in any jurisdiction of- (a) an offence under a law relating to the regulation or supervision of a financial institution as defined in the Financial Institutions (Protection of Funds) Act, 2001 (Act No. 28 of 2001) or a corresponding offence under the law of a foreign country; (b) theft, fraud, forgery, uttering a forged document, perjury or an offence involving dishonesty, breach of fiduciary duty, dishonourable or unprofessional conduct; or (c) an offence under the Prevention of Corruption Act, 1958 (Act No. 6 of 1958), the Corruption Act, 1992 (Act No. 94 of 1992) or Parts 1 to 4, or section 17, 20 or 21, of the Prevention and Combating of Corrupt Activities Act, 2004 (Act No. 12 of 2004), or a corresponding offence under the law of a foreign country?	☐	☐
2.	been convicted of any other offence committed after the Constitution of the Republic of South Africa, 1996, took effect, where the penalty imposed for the offence was a significant fine?	☐	☐
3.	accepted civil liability for, or has been the subject of a civil judgment in respect of, theft, fraud, forgery, uttering a forged document, perjury or an any conduct involving dishonesty, breach of fiduciary duty, misrepresentation, or negligent, dishonourable and unprofessional conduct?	☐	☐
4.	been the subject of frequent or material preventative, remedial or enforcement actions by the Authority or a regulatory authority?	☐	☐
5.	been removed from an office of trust for theft, fraud, forgery, uttering a forged document, misrepresentation, dishonesty, breach of fiduciary duty or business conduct?	☐	☐
6.	breached a fiduciary duty?	☐	☐
7.	been suspended, dismissed or disqualified from acting as a director, managing executive, public officer, auditor or statutory actuary (or his or her alternate) under any law or any action to achieve one of the aforementioned outcomes has been instituted against the person?	☐	☐
8.	been refused a registration, approval, authorisation or licence to carry out a trade, business or profession, or has had that registration, approval, authorisation or licence suspended, revoked, withdrawn or terminated by a regulatory authority?	☐	☐
9.	been denied registration or membership of any professional body or has had that registration or membership revoked, withdrawn or terminated by a professional body because of matters relating to honesty, integrity, or business conduct?	☐	☐
10.	been disciplined, reprimanded, disqualified, or removed in relation to matters relating to honesty, integrity, incompetence or business conduct by a- (a) professional body; or (b) regulatory authority, or has any action to achieve one of the aforementioned outcomes been instituted against the applicant?	☐	☐
11.	knowingly been untruthful or provided false or misleading information to, or been uncooperative in any dealings with, the Authority or a regulatory authority?	☐	☐
12.	demonstrated a lack of readiness and willingness to comply with legal, regulatory or professional requirements and standards?	☐	☐
13.	been found to be not fit and proper by the Authority or a regulatory authority in any previous assessments of fitness and propriety?	☐	☐

14.	been involved or is the applicant involved as a director, trustee, member partner, controlling shareholder or managing executive, or is the applicant concerned in the management, of a business that has been- (a) the subject of any matter referred to in questions 1 to 13 above, or (b) placed in liquidation or business rescue; while the applicant has been connected with that organisation?	☐	☐
15.	failed to disclose any information required to be disclosed in terms of the Act?	☐	☐
16.	been prohibited, by the Authority or any other regulatory body or authority from operating in the financial services industry?	☐	☐
17.	been involved with an entity which has been censured, disciplined, suspended or refused membership or registration by a stock exchange, futures exchange, other market or regulatory body or authority?	☐	☐
18.	knowingly or negligently aided or abetted other persons in the breaching of any laws, regulations, exchange rules and/or codes of conduct?	☐	☐
19.	been the subject of any investigation or disciplinary proceedings by any regulatory authority (whether in the Republic or elsewhere), exchange, professional body, government body or agency?	☐	☐
20.	been or is its estate sequestrated or liquidated, either voluntarily or involuntarily?	☐	☐
21.	been or currently is subject to any pending proceedings that may lead to a conviction of any offence or finding of any liability under any law in any jurisdiction?	☐	☐
22.	been or currently is subject to any investigation or proceedings or pending proceedings or is the applicant aware of any investigations or proceedings that may commence?	☐	☐
23.	been or currently is subject to any other proceedings that may result in any matter referred to in question 1 to 22?	☐	☐

2. General Disclosure Question

Does the applicant have any additional information, which should be brought to the Authority's attention that may have an impact on the evaluation by the Authority of its honesty, integrity or good standing or that may impact on the applicant's ability to obtain or maintain a license to act as a financial services provider?

[If the answer to the questions is YES, a full explanation and all relevant information must be provided in a separate annexure.]

Yes ☐ No ☐

3 Qualifications

Instructions and notes:

1. *Please refer to the List of Recognised Qualifications to determine whether the qualifications listed under this section are recognised. If the qualifications are not recognised you must,* ***prior*** *to submitting this application, apply in the prescribed form and manner to the Authority for recognition of the qualification.*
2. *If the qualification is recognised, indicate under 'Qualification Code' in column three of the Table the qualification Code as reflected on the List of Recognised Qualifications.*
3. *Attach certified copies of the qualifications.*

Provide the following information:

No	Qualification code	Qualification Type	Year obtained

4. Regulatory Examinations

Indicate which of the following regulatory examinations have been completed.

RE 1 ☐	**RE 3** ☐
RE 4 ☐	**RE 5** ☐

5. Class of Business Training

Indicate the class of business training that has been completed and attach certified copies of the certificates.

Class of business	Training completed
Short-term Insurance: Personal Lines	☐
Short-term Insurance: Commercial Lines	☐
Long-term Insurance	☐
Pension Fund Benefits	☐
Short-term and Long-term Deposits	☐
Structured Deposits	☐
Investments	☐
Forex Investments	☐
Health Services Benefits	☐

6. EXPERIENCE

Instructions and notes:

1. *All positions held since inception of the applicant's career must be listed hereunder.*
2. *Full details of the applicant's responsibilities/functions for every position held in the* ***last five years*** *and on which the applicant relies to demonstrate compliance with the experience requirements must be provided in a separate annexure.*
3. *Attach a copy of the applicant's CV.*

6.1 Provide the following information regarding the applicant's work experience:

No	Date of Employment (dd/mm/yy – dd/mm/yy)	Employer	Position Held

6.2. Provide-

(a) reference letters from appropriate senior officials that confirm the particular experience obtained by the applicant and his/her employment history. Reference letters must be provided for all experience on which the applicant relies to demonstrate compliance with the relevant experience requirement; and

(b) the following information:

No.	Name of Person providing reference	Company Employed	Designation

6.3. Indicate in the relevant Tables hereunder the information regarding the applicant's experience obtained in the rendering of financial services in respect of each Category and financial product per Category in respect of which authorisation is sought.

Instructions and Notes:
(a) The months of experience indicated under this subsection must be supported by a reference letter as referred to in section 6.2.

TABLE A - CATEGORY I

No	Category		Months Experience – Advice		Months experience – Intermediary Services
1.1	Long-term Insurance subcategory A	☐		☐	
1.2	Short-term Insurance Personal Lines	☐		☐	
1.3	Long-term Insurance subcategory B1	☐		☐	
1.4	Long-term Insurance subcategory C	☐		☐	
1.5	Retail Pension Benefits	☐		☐	
1.6	Short-term Insurance Commercial Lines	☐		☐	
1.7	Pension Fund Benefits	☐		☐	
1.8	Shares	☐		☐	
1.9	Money-market instruments	☐		☐	
1.10	Debentures and securitised debt	☐		☐	
1.11	Warrants, certificates or other instruments	☐		☐	
1.12	Bonds	☐		☐	
1.13	Derivative instruments	☐		☐	
1.14	Participatory interest in one or more collective investment schemes	☐		☐	
1.15	Forex Investment	☐		☐	
1.16	Health Service Benefits	☐		☐	
1.17	Long-term Deposits	☐		☐	
1.18	Short-term Deposits	☐		☐	
1.19	Friendly Society Benefits	☐		☐	
1.20	Long-term Insurance subcategory B2	☐		☐	
1.21	Long-term Insurance subcategory B2-A	☐		☐	
1.22	Long-term Insurance subcategory B1-A	☐		☐	
1.23	Short-term Insurance Personal Lines A1	☐		☐	
1.24	Structured Deposits	☐		☐	
1.25	Securities and instruments	☐		☐	
1.26	Participatory interest in a hedge fund	☐		☐	
1.27	Crypto Assets	☐		☐	

TABLE B - CATEGORY II			
No	**Category**		**Months Experience**
2.1	Long-term Insurance subcategory B1	☐	
2.2	Long-term Insurance subcategory C	☐	
2.3	Retail Pension Benefits	☐	
2.4	Pension Fund Benefits	☐	
2.5	Shares	☐	
2.6	Money market instruments	☐	
2.7	Debentures and securitised debt	☐	
2.8	Warrants, certificates and other instruments	☐	
2.9	Bonds	☐	
2.10	Derivative instruments	☐	
2.11	Participatory Interests in one or more collective investment schemes	☐	
2.12	Forex Investment	☐	
2.13	Long-term Deposits	☐	
2.14	Short-term Deposits	☐	
2.15	Long-term Insurance subcategory B2	☐	
2.16	Long-term Insurance subcategory B2-A	☐	
2.17	Long-term Insurance subcategory B1-A	☐	
2.18	Structured Deposits	☐	
2.19	Securities and instruments	☐	
2.20	Participatory interest in a hedge fund	☐	
2.21	Crypto Assets	☐	

TABLE C - CATEGORY IIA			
No	**Category**		**Months Experience**
2A	Category IIA	☐	

TABLE D - CATEGORY III			
No	**Category**		**Months Experience**
3	Category IV	☐	

TABLE E - CATEGORY IV			
No	**Category**		**Months Experience**
4	Category IV – Assistance Business FSP	☐	

7. General Skills and Knowledge Requirement

Demonstrate whether the applicant has adequate, appropriate and relevant skills, knowledge and expertise (general competence requirement) to perform the function in respect of crypto assets as required in terms of the fit and proper requirements determined under section 6A of the Act.
*(**Note**: This section must only be completed if the applicant will be rendering financial services in respect of crypto assets.)*

8. Consent

I, …….. (full name of applicant)

Identity / passport number ……. hereby authorise the **Authority**, and its duly authorised verification agent, to request or confirm any personal information as well as any other information that I have provided in support of the application to any personal data holders (including but not limited to the South African Police Services, the Government of the RSA, industry bodies and associations, employers and any educational, training, credit bureau and fraud prevention organisations) for the purpose of verifying my personal credentials and records, as well as other information necessary for purposes of the application.

Credential verification types include, but are not limited to, educational qualifications, professional membership, employment history, employment references including industry employment registers, consumer credit, criminal records, drivers' licence, and fraud prevention checks.

I authorise the personal data holders (including but not limited to the aforesaid institutions) to furnish information regarding the credentials, whether claimed or not, to the **Authority** and it's duly authorised verification agent. I unconditionally indemnify the **Authority**, its verification agent and the personal data holders against any liability that may result from furnishing information in this regard.

……..	……..	…….
Name	**Signature**	**Date**